

8. **Power as to the objects of the trust.**—Where the *objects* of a charity are from time to time to be at the discretion of the trustees (as if annual sums be made distributable *either* to private individuals *or* public institutions, *as the trustees may think fit*), the Court will not even order a scheme to be proposed, but will leave the trustees to the free exercise of their power with liberty for all parties to apply (c).

9. **Selection of particular objects.**—So where trustees had a power of selecting a lad for education from certain parishes, and if there were no suitable candidate, then from any other parish, and the trustees upon consideration rejected the candidate from the specified parishes, and selected a lad from another parish, it was held that the Court could not control the discretion. The trustees had assigned no reason for their choice, but that the Court said was not necessary, and in many cases would not be proper (d).

10. **Reasons for exercise of the power.**—But though trustees invested with a discretionary power are not bound to assign their reasons for the way in which they exercise it; yet, if they do state their reasons, and it thereby appears that the trustees were labouring under an error, the Court will set aside the conclusion to which they came upon such false premises (e).

11. **Powers not to be exercised nunc pro tunc.**—Where trustees have a discretionary power they must exercise their judgment according to the *circumstances as they exist at the time*, and they cannot, therefore, anticipate the arrival of the proper period by affecting to release it or by pledging themselves beforehand as to the mode in which the power shall be executed *in futuro* (f).

*[12. **Exercise of the power by will.**—Where a [*616] trustee had an absolute discretion to apply the trust

507; *Bennett v. Honeywood*, Id. 708; *Mahon v. Savage*, 1 Sch. & Lef. 111; *Supple v. Lowson*, Amb. 729, &c.

(c) *Waldo v. Caley*, 16 Ves. 206; *Horde v. Earl of Suffolk*, 2 M. & K. 59; and see *Powerscourt v. Powerscourt*, 1 Moll. 616; *Holmes v. Penney* 3 K. & J. 103.

(d) *Re Beloved Wilkes's Charity*, 3 Mac. & G. 440.

(e) *Ib.* 3 Mac. & G. 448; *King v. Archbishop of Canterbury*, 15 East. 117.

(f) *Weller v. Ker*, 1 L. R. Sc. App. 11; [*Moore v. Clench*, 1 Ch. D. 447, 453; *Chambers v. Smith*, 3 App.